

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

TOYOTA DE PUERTO RICO CORP., *Complainant*

v.

PUERTO RICO PORTS AUTHORITY, CROWLEY PUERTO RICO SERVICES, INC., AND OCEANIC GENERAL AGENCY, INC.,
Respondents.

DOCKET NO. 19-02

Served: November 14, 2019

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

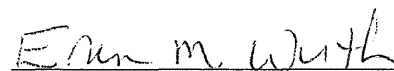
ORDER DENYING MOTION TO COMPEL AND MOTION TO STRIKE

On November 12, 2019, Respondent filed a motion requesting an order to compel Complainant to respond to five interrogatories ("Motion to compel"). On November 13, 2019, Complainant filed an informative motion and motion to strike Respondent's motion to compel ("Motion to strike").

Respondent moves to compel answers to five interrogatories regarding whether or not Complainant passed on the enhanced security fees that it was charged and also states that "there is no difficulty in proving that Toyota passed down those costs through the commercial stream." Motion to compel at 1-2. The motion attached correspondence between the parties including an October 14, 2019, letter from Complainant regarding the legal basis of their objection to providing information regarding pass through of the fee. Motion to compel, Exhibit 4.

Complainant moves to strike the motion to compel, stating that it was filed after close of business on the last day of discovery and that the responses at issue had been provided almost three months prior. Motion to strike at 1-2. Complainant requests additional time to respond to the motion to compel if the motion to strike is denied. Motion to strike at 2.

Complainant's motion to strike is denied and will be treated as an opposition to the motion to compel. The issue of whether or not the pass-through defense is available in Commission proceedings is not settled. Resolution of this issue is more appropriate through thorough briefing, which is scheduled to begin next month, particularly where there already is evidence that the fees were passed down. To expedite the resolution of this proceeding, the motion to compel is denied. Accordingly, it is hereby **ORDERED** that the motion to compel and motion to strike be **DENIED**. The parties should proceed with briefing as scheduled in the October 22, 2019, revised scheduling order.



Erin M. Wirth
Chief Administrative Law Judge